

LEARNER WORKBOOK SECTION

FORMATIVE ASSESSMENT (OPEN BOOK EXAM)

APPLY LEGAL ASPECTS IN A SECURITY ENVIRONMENT UNIT STANDARD 244184

Full Name and Surname: _____

ID Number: _____ Date of Assessment: _____

Name of Assessor: _____

Learner Signature: _____ Assessor Signature: _____

Pass mark is 70% (99 out of 142)

Competent:

☐

Not Yet Competent:

☐

SKILLS PROGRAM 1
BOOK 2



1. Fill in the missing words: **(3 Marks)**

Security Officers must understand the _____ framework in which they operate, to _____ themselves and the _____ for which they are working and rendering a service to.

2. Fill in the missing words: **(4 Marks)**

The purpose of the Bill of Rights is to protect the individual against _____ of the authority of the State (including the police) and, in some instances, imposes a _____ on the State to provide citizens with certain _____ and economic _____.

3. List 9 (nine) examples of rights contained in the Bill of Rights that are relevant to the security services. **(9 Marks)**

4. The rights and obligations of security/police officials in their official capacity are embodied in section 205(3) of the Constitution. List 4 (four) of these rights and obligations. **(4 Marks)**

5. Fill in the missing words: **Limitation clause (3 Marks)**

The Constitution places an _____ on every security/police official to _____ and _____ the fundamental human rights of every person in South Africa.

6. The rights in the Bill of Rights may be limited only in terms of law of general application to the extent that the limitation is reasonable and justifiable in an open and democratic society based on human dignity, equality and freedom, taking into account all relevant factors. List 5 (five) of these factors. **(5 Marks)**

7. Section 12 of the Bill of Rights refers to the right of freedom and security of the person. List 4 (four) rights mentioned in this section. **(4 Marks)**

8. What is the purpose of the PSIRA Code of conduct? **(5 Marks)**

9. List 4 (four) relevant parties that the Code of conduct applies to. **(4 Marks)**

10. A security service provider has certain general obligations towards the public and the private security industry. A security service provider must at all times act in a manner which: (List 5 (five)). **(5 Marks)**

11. When a person acts in private defense when is his conduct lawful? **(Criminal Law) (5 Marks)**

12. Below is table with the requirements of private defense. Complete the table with the requirements of attack and defense. **(6 Marks)**

Requirements of attack: The attack	Requirements of defense: The defensive action

13. Fill in the missing words: **(9 Marks)**

Necessity

A person acts out of necessity, and his conduct is therefore lawful:

- ◆ *if he acts in the _____ of his own or somebody else's _____, _____ or*
- ◆ *other legally recognized interest which is _____ by a threat of harm which has already begun or is _____ and which cannot be averted in any other way;*
- ◆ *provided that the person who relies on the necessity is not _____ to endure the danger,*
- ◆ *and the interest protected by the act of _____ is not out of proportion to the interest threatened by such an act.*

14. There are certain requirements for plea of consents. List 4. **(4 Marks)**

The consent must be:

The consent must be:

The consent must be:

The consent must be:

15. Fill in the missing words: **(4 Marks)**

Perjury at common law

Perjury at common law consists in the _____, intentional making of a _____ under oath (or in a form allowed by law to be substituted for an oath) in the course of a _____ proceeding.

16. Four basic requirements must be complied with before a person can be convicted of theft in any of its forms. List the 4 (four) requirements. **(4 Marks)**

17. Which Act gives private persons the right to arrest someone without a warrant in certain circumstances? **(1 Mark)**

18. Fill in the missing words: **(1 Mark)**

_____ of the Criminal Procedure Act requires certain male persons to assist in the execution of an arrest when called upon to do so by a member of the SAPS.

19. Are the following statements true or false? **(2 Marks)**

- a. **“Arrestor”** means any person in respect of whom an arrestor has or had a reasonable suspicion that such person is committing or has committed an offence.

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- b. **“Suspect”** means any person in respect of whom an arrestor has or had a reasonable suspicion that such person is committing or has committed an offence.
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20. List 10 (ten) Schedule 1 offences as mentioned in Sections 40 & 42 of the Criminal Procedure Act. **(10 Marks)**

21. Are the following statements true or false? **(4 Marks)**

The concept of lethal force is described in line with common law principles

- a. *The Constitutional Court judgment has clarified that under South African law a person carrying out an arrest may use the force which is necessary to overcome resistance to the arrest or to prevent the person concerned from fleeing.* _____
- b. *A person carrying out an arrest may use force and they may only shoot a firearm or similar weapon if they have reasonable grounds for believing either (1) that the suspect poses an immediate threat of serious bodily harm to them, or a threat of harm to members of the public; or (2) that the suspect has committed a crime involving the infliction or threatened infliction of serious bodily harm.* _____
- c. *The Walters' judgment impacts only on the use of lethal force.* _____
- d. *Where suspected criminals have not inflicted or threatened serious physical harm, it is justifiable to use lethal force.* _____

22. Explain the legal requirements when using lethal force for private or self defence. **(3 Marks)**

23. What is the purpose of the Liquor Act? (4 Marks)

24. Fill in the missing words: (3 Marks)

Purpose of the Explosives Act

To consolidate the laws relating to the _____, _____, sale, _____, importation, exportation and the use of explosives.

25. Fill in the missing words: (4 Marks)

Dangerous Weapons Act

Dangerous weapon' means any _____, other than a firearm, which is likely to cause _____ if it were used to commit an assault;

26. Is the following statement true or false? (1 Mark)

Any person who is in possession of any object, firearm or replica of a firearm in contravention of the provisions of any notice issued shall be guilty of an offence and liable on conviction to the penalties prescribed in subsection (1)._____.

27. Explain the requirements for carrying a firearm in a public place. (3 Marks)

Section 84 of the Firearms Control Act 60/2000.

28. Fill in the missing words: (7 Marks)

Trespassing

Section 1(1) of the Trespass Act 6 of 1959 provides that any person who without the permission:

- (b) of the _____ of any land or building or part of a building ; or
- (b) of the owner or person in _____ of any land or any building or part of a building that is not _____ occupied by any person,
- (c) enters or is upon such land or enters or is in such building or part of a building, shall be _____ of an offence unless he has _____ to enter or be upon such land or enter or be in such building or part of a building.

29. List 3 (three) people who have lawful reasons to enter land or buildings. **(3 Marks)**

30. Fill in the missing words: **(6 Marks)**

The manner in which the search must be conducted

In terms of section 29 of the Criminal Procedure Act a search of a person and premises must be conducted in decent and orderly manner. This section stipulates the following:

A search of any person or premises shall be conducted with strict regard to _____ and _____, and a woman shall be searched by a _____ only, and if no female police official is available, the search shall be made by any woman designated for the purpose by a police official.

This section requires that the normal standards of decency be complied with and that the persons searched be subject to the least _____ to their dignity possible under the circumstances.

Remember that _____ and probe searches should not be undertaken by security personnel.

31. Where an organisation seeks to hold a protest march or gathering, a notification form must be completed in terms of Section 321. List 5 (five) requirements that needs to be filled in on the notification form. **(5 Marks)**

Importance of the Gatherings Act

32. Fill in the missing words: **Vicarious liability (4 Marks)**

Vicarious liability is a creation of statute, because in common law a person will only be held _____ for his or her _____ conduct.

Vicarious liability is used to hold _____ liable for the conduct of their employees, where they would under normal circumstances plead lack of _____.

33. Fill in the missing words: **Civil liability (3 Marks)**

Civil liability gives a person rights to obtain _____ from another person e.g. the ability to sue for damages for _____.

TOTAL MARKS: _____
142